

25STCV33795 25STCV33795

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-09-04

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Case Number: 25STCV33795 Hearing Date: September 4, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 12:41 PM on September 3, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on September 3, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to smcdept734@lacourt.org, with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

Plaintiff

alleges that he purchased a Chipotle burrito and bit into an avocado stem that cracked and chipped his tooth.

Defendant

Chipotle Mexican Grill, Inc. moves to compel responses to form and special interrogatories and requests for production of documents propounded upon Plaintiff, as well as an order deeming admitted requests for admission. Defendant also requests the imposition of sanctions.

TENTATIVE RULING

The hearing on Defendant

Chipotle Mexican Grill, Inc.'s motions to compel responses to form and special interrogatories, set one, requests for production of documents and for an order deeming admitted requests for admission, and for sanctions, as against Plaintiff were continued to this date. Defendant served these motions by electronic service only. However, "[u]nrepresented persons are exempt from any mandatory electronic filing imposed pursuant to this subdivision." (Civ.

Proc. Code § 1010.6(f)(2).) Self-represented parties or self-represented persons are to be served by non-electronic methods unless they affirmatively consent to electronic service. (Cal. Rules of Court, Rule 2.251(c)(3)(B).)

Defendant

was previously ordered to serve the motions and notice of the continuance by mail upon Plaintiff. However, notice of these motions were served by mail on August 12, 2026, which is only 16 court days plus 1 calendar day prior to the September 4, 2026 hearing date. An additional 4 calendar days for service by mail was required. (Code Civ. Proc. § 1005(b).)

As such,

the hearing on Defendant's motions to compel responses to form and special interrogatories, set one, requests for production of documents and for an order deeming admitted requests for admission, and for sanctions, as against Plaintiff is CONTINUED to October 5, 2026 at 8:30 a.m. Defendant to give notice of the continuance by mail forthwith. If Defendant does not establish proper, timely service of notice for the October 5, 2026 hearing date, the Court will order the motions off calendar for repeated failure to serve statutory notice in the manner required by statute.